

3.2 Scope of this Chapter

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > **Part 3 Non-court Dispute Resolution**

Part 3

Non-court Dispute Resolution

Essentials 7: Financial remedy and private law children Pre-application Protocols

Essential legal framework

[3.26]

Where are the Pre-application Protocols (PAPs)?

- The PAP for financial remedy proceedings is the Annex to FPR 2010, PD9A (see para [3.417](#)).
- The PAP for private law proceedings relating to children is Annex 2 to FPR 2010, PD12B (the Child Arrangements Programme) see para [3.594](#)).

Who do they apply to? Subject to certain exceptions in respect of private law children proceedings (see further below) everyone is required to comply with the contents of the PAPs whether or not they have legal representation. The PAPs are prefaced by a summary of their contents aimed at those who do not have legal representation.

When did the PAPs come into effect? Both PAPs came into force on 31 May 2024.

What is their objective? To encourage appropriate engagement in non-court dispute resolution (NCDR) before starting court proceedings. The PAPs therefore set out the key steps the court expects parties to take in relation to NCDR before proceedings are issued and signposts resources for the parties to consider to help resolve the dispute. The requirement to consider NCDR then continues after the issue of proceedings.

How does the court monitor and apply the PAPs? If court proceedings are started, a party must set out their position on using NCDR using Form FM5 and send this to the court and to the other party at least 7 working days before the first appointment (in financial remedy proceedings) or the FHDRA (in private law children proceedings which are within the portal) or as directed by the court. See further below in respect of each PAP.

Are there possible consequences for a failure to comply? The court (1) may adjourn the court proceedings to encourage parties to consider using (and to undertake) NCDR; and (2) will have regard to any failure by a party to attend a MIAM or a form of NCDR when considering the question of costs (together with any other failure to comply with the PAP) and may make an order requiring that party to pay towards the other party's costs.

Financial remedy proceedings

The PAP applies whatever the size of the parties' assets. The key steps the court expects parties to take include:

- attending at least one form of NCDR unless there are safety concerns or another good reason not to do so;
- all applicants are required to attend a MIAM unless they have a valid exemption, and all respondents are expected to do so. An authorised mediator will give the parties information about which form of NCDR may be most suitable;

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- the parties should attempt, where possible, voluntary financial disclosure and negotiation. Parties must be advised of the duty to give full and honest disclosure including the ongoing duty to disclose any material changes. Pre-application disclosure should be provided using Form E, Form E1 or Form E2 as appropriate;
- requests for further disclosure must be necessary, relevant, and limited to what is reasonably required;
- the parties should clearly set out their position including the orders they would wish the court to make were proceedings started.

Lengthy and unnecessary correspondence must be avoided and the parties must seek to identify the issues as soon as possible. The impact of any correspondence upon the reader must always be considered, particularly the first letter.

Private law proceedings relating to children

The PAP does not apply when (i) the parties are agreed about the order they are inviting the court to make; (ii) the child/children are the subject of emergency proceedings, care proceedings or supervision proceedings; or (iii) if there is evidence of domestic abuse, risk of harm to a child or risk of the removal of a child from the United Kingdom.

The PAP states:

- before coming to court, and where it is safe to do so, parties are expected to explore the sources of support and advice which may help them to resolve their dispute away from court. They are expected to consider whether a form of NCDR might help to resolve a dispute without the need to start court proceedings;
- the applicant must attend a MIAM before making an application to the court, unless they have a valid exemption, and the respondent is strongly encouraged and expected to do so. An authorised mediator will give the parties information about which form of NCDR may be most suitable;
- coming to court should be a last resort if there are no safety concerns;
- if the dispute does come to court, a judge will only make an order in relation to a child if they believe that making an order would be better for the child than not making one. Therefore, the judge will expect parties to have tried everything they can to agree their child arrangements outside of court;
- the law expects parties to do what is best for the child(ren) involved in a dispute, even when they might find that difficult. It states that unless it is unsafe to do so, a child needs to have a relationship with both parents and the court will expect both parents to cooperate to meet this need;
- parties will also be expected to see their dispute through the eyes of the child(ren) involved and ensure that all decisions are made in their best interests;
- wherever possible, and where age appropriate, the child(ren) involved in a dispute will have their voices heard when decisions which impact them are being made.

[3.27]

General note on non-court dispute resolution—This Part of the Rules represents an emphasis on what is termed 'non-court dispute resolution' (NCDR) (otherwise 'dispute resolution' (DR) or 'alternative dispute resolution' (ADR)).

FPR Part 3 has historically been underused despite r 1.4(1) stating that the court 'must further the overriding objective by actively managing cases' and by r 1.4(2)(f) active case management includes 'encouraging the parties to use a non-court dispute resolution procedure if the court considers that appropriate and facilitating the use of such procedure'.

3.2 Scope of this Chapter

Revisions to both Part 3 and Part 28 came into effect on 29 April 2024 when the material parts of [SI 2023/1324](#) came into force. There are no transitional provisions and the revisions therefore apply to proceedings issued before that date.

The definition of NCDR in r 2.3(1)(b) was widened from referring solely to mediation to mean all methods of resolving a dispute other than through the court process to include (but not limited to) arbitration, evaluation by a neutral third party (such as a private FDR) and collaborative law.

Provision is made in an amended r 3.3(1A) for the court to require parties to file and serve '... a form setting out their views on using NCDR as a means of resolving matters raised in the proceedings' (Form FM5) and is therefore akin (albeit open rather than without prejudice save as to costs) to a so-called *Ungley* order where a court may require a party to file a statement to similar effect and thereafter make an adverse costs order if there have been no reasonable invitations made to engage in NCDR, or if such invitations have either been ignored or unreasonably refused without good reason. See further *Mann v Mann* [2014] EWHC 537 (Fam), [\[2014\] 2 FLR 928](#) where such an order was made by Mostyn J and The Family Solutions Initiative – a response to a system in crisis [\[2021\] Fam Law 518](#), Barham, Kingerley QC and Taylor.

By r 3.4(1A)(b), the court may now adjourn to encourage parties to undertake NCDR. The agreement of the parties is therefore no longer required. An order to this effect was made by Nicholas Allen KC in *NA v LA* [\[2024\] EWFC 113](#). Sir Jonathan Cohen indicated he intended to make such an order in *A v M (No 3)* [\[2024\] EWFC 299](#).

The accompanying PD3A has also been amended and makes clear that the court may in addition use its powers to adjourn proceedings to encourage the use of NCDR (para 4.1).

This power to encourage, so far as applications for financial remedies are concerned, is backed with an amended r 28.3(7) which makes a failure, without good reason, to attend NCDR an express reason for the court to consider departing from the starting point of no order as to costs.

A similar amendment to the costs rules that apply to other family proceedings (for example, [ChA 1989, Sch 1](#) applications, intervener claims, interim applications, and appeals) and to applications under [TOLATA 1996](#) and [I\(PFD\)A 1975](#) was made to CPR Part 44 with effect from 1 October 2024 when [SI 2024/839](#) came into force. There is now an insertion into r 44.2 (court's discretion as to costs) at r 44.2(5)(e) so the conduct of the parties to which the court will have regard in deciding what order (if any) to make about costs will include '*whether a party failed to comply with an order for alternative dispute resolution, or unreasonably failed to engage in alternative dispute resolution*' (as it is referred to in the CPR). In the context of an appeal, a refusal to mediate save on unreasonable terms was penalised in costs: *H v W (Cap on Wife's Share of Bonus Payments) (No 2)* [\[2014\] EWHC 2846 \(Fam\)](#), [\[2015\] 2 FLR 161](#).

As PD3A makes clear, before commencing private law proceedings relating to children or proceedings for a financial remedy, an applicant must, save in certain specified circumstances, attend a mediation information and assessment meeting (MIAM). It is obligatory when issuing proceedings to file confirmation from a mediator that a MIAM has been attended, or to claim a 'MIAM exemption' or 'mediator's exemption', as defined.

If it appears that exemption has been wrongly claimed, the court may adjourn the proceedings for the applicant to attend a MIAM. The Court of Appeal has been critical of attempts to avoid attending a MIAM by a generic assertion such as 'the case is urgent' (*Re K* [2022] EWCA Civ 468, [\[2022\] 2 FLR 1064](#)). From 29 April 2024, the MIAM exceptions were tightened up, in particular with the MIAM exception at r 3.8(1)(c)(ii)(ad) amended from 'unreasonable hardship' to 'significant financial hardship'.

The court may also now enquire whether MIAM exceptions previously claimed were valid or remain valid (r 3.10(1)). The background to this amendment can be found in the President's Family Mediation Association Conference John Cornwell address (28 September 2022): www.judiciary.uk/speech-by-the-president-of-the-family-division-relaunching-family-mediation/.

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The MIAM process itself has also been modernised: r 3.9(2)(d) now provides that a MIAM provider will indicate which forms of NCDR 'may be most suitable as a means of resolving the dispute and why' with a requirement that information is provided about different forms of NCDR beyond purely mediation (see r 2.3(1) for the extended definition as noted above). Previous references to domestic violence have been updated to domestic abuse, in keeping with definitions in the [DAA 2021](#).

The amendments made to Part 3 from 29 April 2024 represent the fruit of the FPRC's consultation on the early resolution of private family law arrangements: www.gov.uk/government/consultations/early-resolution-of-private-family-law-arrangements. Time will tell whether the amendments will herald a change in culture and interest in NCDR in a similar fashion to how FPR 2010, PD28A 4.4 and recent case law has incentivised a culture change for the making of open offers. The provisions go the edge of but do not represent mandation, which was the subject of a separate Ministry of Justice consultation which decided against mandation of NCDR: <https://consult.justice.gov.uk/digital-communications/private-family-law-consultation/>.

The financial remedies pre-application protocol (annexed to PD9A) was rewritten by the Family Procedure Rule Committee (effective from 31 May 2024). A new pre-application protocol for private law children proceedings (Annex 2, PD12B) was also issued, effective from the same date. Both protocols reiterate the provisions in respect of MIAMs in Part 3 before issuing a court application and detail the steps a party must have taken to engage in NCDR.

CHAPTER 1 INTERPRETATION

[3.28]

3.1

In this Part –

'allocation' means allocation of proceedings other than appeal proceedings to a level of judge;

'authorised family mediator' means a person identified by the Family Mediation Council as qualified to conduct a MIAM;

(Omitted)

'family mediation information and assessment meeting' has the meaning given to it in section 10(3) of the 2014 Act.

'harm' has the meaning given to it in [section 31](#) of the Children Act 1989;

(Omitted)

'MIAM' means a family mediation information and assessment meeting;

'MIAM exemption' has the meaning given to it in Rule 3.8(1);

'MIAM requirement' is the requirement in section 10(1) of the 2014 Act for a person to attend a MIAM before making a relevant family application;

'private law proceedings' has the meaning given to it in Rule 12.2;

'prospective applicant' is the person who is considering making a relevant family application;

'prospective party' is a person who would be likely to be a party to the proceedings in the relevant family application;

(Omitted)

'relevant family application' has the meaning given to it in section 10(3) of the 2014 Act.

3.2 Scope of this Chapter

[3.28[1]]

Amendments—[SI 2014/843](#); [SI 2015/1868](#); [SI 2023/1324](#).

CHAPTER 2

THE COURT'S DUTY AND POWERS GENERALLY

[3.29]

3.2 Scope of this Chapter

This Chapter contains the court's duty and powers to encourage and facilitate the use of non-court dispute resolution.

[3.29[1]]

Amendments—Substituted by [SI 2014/843](#).

'encourage'—As noted, the court cannot compel the parties to use non-court dispute resolution (NCDR).

One encouragement to parties to engage in NCDR is that statements made in the course of it are confidential, and evidence of them may not be given to the court, unless there is a risk of significant harm to a child, and even then, the final hearing judge will admit the evidence only if the public interest in protecting the interests of the child outweighs the public interest in preserving confidentiality (*Re D (Minors) (Conciliation: Disclosure of Information)* [1993] 1 FLR 932; *Re E (A Child) (Mediation Privilege)* [2020] EWHC 3379 (Fam)). The suggestion that the cloak of confidentiality might be withdrawn in other circumstances has been described as 'alarming' (*BL v TC & Another* [2017] EWHC 3363 (Fam)). See also *L v O (Stay of Order; Hadkinson Order; Security for Costs)* [2024] EWFC 6, [2024] 2 FLR 343 where Cobb J considered at [58]–[59] whether a judge hearing a *Barder* or *Thwaite* application can/should be made aware of what took place at the FDR appointment where the original order was agreed and where this may be relevant to 'foreseeability' and resolved to refer the issue back to Moor J – who had heard the FDR – in default of agreement between the parties.

Arbitration—As decided in *Haley v Haley* [2020] EWCA Civ 1369, [2021] 1 FLR 1429, the logical approach by which to determine whether the court should decline to make an order in the terms of the award is by reference to the appeal procedure and the approach found in FPR 2010. The test is therefore whether the arbitrator's award is wrong; not seriously, or obviously wrong, or so wrong that it leaps off the page, but just wrong. The party challenging the award is not required to invoke the remedies available under the [Arbitration Act 1996](#) (ie ss 57, 67, 68, and 69) before asking the family court to decline to make an order in terms of the award.

When presented with a refusal on the part of one party to agree to the conversion of an award into a consent order, the papers should be placed before a circuit judge authorised to hear financial remedy appeals or a High Court judge (whichever is appropriate on the facts of the case). The judge will 'triage' the case with the reluctant party having to show cause on paper why an order should not be made in the terms of the award. Such approach is similar to the permission to appeal filter found at r 30.7. If the judge takes the view that the objection(s) made to the award would not pass the permission to appeal test, then an order can be made in the terms of the award and the reluctant party penalised in costs. If the judge is of the view that there is a real prospect of the award being shown to be wrong, the matter can be set down for a hearing. That hearing will, as with an appeal, be confined to a review and will not be a rehearing, subject to any case management directions which the judge may make in relation to updating or other evidence and subject to, as under r 30.12(1)(b), the court considering that it would be 'in the interests of justice to hold a rehearing'.

In *A v A (Arbitration: Guidance)* [2021] EWHC 1889 (Fam), [2022] 1 All ER 172 Mostyn J gave guidance as to the procedure to be followed when one party refuses to agree to the conversion of an arbitral award into a consent order. A Form A must be issued, if this has not already been done. Once there is a validly issued Form A the application by P, challenging the award, or by D, seeking to implement the award, should be made in Form D11 using the Part 18 procedure. An application challenging an award should be made within 21 days of the date of the

3.2 Scope of this Chapter

arbitral award in its final form. There is no time limit for making an application seeking to implement an award – ‘*It is easy to imagine negotiations about the terms of an implementing consent order breaking down after weeks of discussion*’. An initial gatekeeping order is at Order 6.4 of the Standard Family Orders Volume 1 (revised 17 May 2023 and updated 24 October 2023).

The principle that costs will normally follow the event should apply on an application seeking to challenge, or implement, an arbitral award. The general rule of no order as to costs in r 28.3(5) will not apply to such an application.

The approach taken in *Haley v Haley* (above) applies equally to a determination in a children arbitration – *G v G* [2022] EWFC 151, [\[2023\] 2 FLR 491](#), where Peel J, with the President's approval, offered procedural guidance and a gatekeeping order (now at Order 22.4 of the Standard Family Orders Volume 2 (revised 17 May 2023 and updated 24 October 2023)).

In *SW v IB* [2023] EWFC 42 HHJ Willans carried out a paper triage when a mother objected to the determination and the father asked for the determination to be upheld. The judge concluded that the mother's application did not have real prospects of success such as to justify an inter partes hearing. The arbitrator's determination was endorsed by the court and the draft order approved.

In *Re A and B (Schedule 1: Arbitral Award: Appeal)* [2024] EWHC 778 (Fam), [\[2024\] 2 FLR 807](#), Cobb J allowed an appeal from a judgment of HHJ Evans-Gordon (reported as *LT v ZU* [2023] EWFC 179 (B)) in which she upheld a father's challenge to an arbitral award made under [ChA 1989, Sch 1](#). Cobb J remitted for rehearing the parties' cross-applications namely (i) the father's challenge to the arbitral award on the basis that his circumstances had deteriorated significantly since the arbitration to such an extent that it would be unfair to convert the arbitral award into an order; and (ii) the mother's application for notice to show cause why an order should not be made in the terms of the arbitral award. See further at para [2.377\[1\]](#).

In *G v G* (above), Peel J also expressed 'strictly tentative' views on three procedural questions that arose, and which were not specifically referred to in either *Haley v Haley* or *A v A (Arbitration: Guidance)*, namely:

- (i) A party aggrieved by the triage/paper decision has a right to apply to set aside the order under r 4.1(6) but must establish exceptionality to justify the application. It is difficult to see why this route would be elected by the aggrieved party ahead of an appeal against the triage/paper order where a lower threshold (that the order was wrong) applies.
- (ii) A party dissatisfied with the triage/paper decision has a right of appeal under Pt 30, which must go through the usual appellate procedure including the filter stage of permission to appeal. It may be that the approach to be taken by the appellate court will be informed by the second appeals test at CPR 1998, r 52.7.
- (iii) If the triage/paper order provides for a full inter partes hearing, a party dissatisfied with the order made at that hearing similarly has a right of appeal under Part 30, which must go through the usual appellate procedure including the filter stage of permission to appeal. Again, it may be that the approach to be taken by the appellate court will be informed by the second appeals test at CPR 1998, r 52.7.

Private FDRs—How private FDRs are integrated into the wider financial remedies framework was considered in *AS v CS (Private FDR)* [2021] EWFC 34, [\[2021\] 4 WLR 68](#) per Mostyn J.

Orders 6.1 to 6.4 of the Standard Family Orders Volume 1 (revised 17 May 2023 and updated 24 October 2023) relate to financial arbitration under the IFLA scheme. Orders 22.1 to 22.4 of the Standard Family Orders Volume 2 relate to children arbitration under the IFLA scheme.

Forms

[Click here to view Form online](#)

3.2 Scope of this Chapter

[3.30]

End of Document

3.3 The court's duty to consider non-court dispute resolution

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3 Non-court Dispute Resolution](#)

- (1) The court must consider, at every stage in proceedings, whether non-court dispute resolution is appropriate.
- (1A) When the court requires, a party must file with the court and serve on all other parties, in the time period specified by the court, a form setting out their views on using non-court dispute resolution as a means of resolving the matters raised in the proceedings.
- (2) In considering whether non-court dispute resolution is appropriate in proceedings which were commenced by a relevant family application, the court must take into account –
 - (a) whether a MIAM took place;
 - (b) whether a valid MIAM exemption was claimed; and
 - (c) whether the parties attempted mediation or another form of non-court dispute resolution and the outcome of that process.

[3.30[1]]

Amendments—[SI 2014/843](#); [SI 2023/1324](#).

'at every stage in proceedings' (r 3.3(1))—Specific issue arbitration may be 'perfectly proper and appropriate even in cases that are proceeding through the court system' (*CM v CM* [2019] EWFC 16 – dispute as to the terms of a letter of instruction which was inappropriately referred back to a busy High Court Judge).

In *Re K* [2022] EWCA Civ 468, [\[2022\] 2 FLR 1064](#) the court set out this rule and others to stress the importance of this requirement.

'when the court requires' (r 3.3(1A))—This obligation (in Form FM5) was introduced by the Family Procedure (Amendment No 2) Rules 2023, [SI 2023/1324](#). It is a form of so-called *Ungley* order (albeit open rather than without prejudice save as to costs) whereby a judge will consider whether there were no reasonable invitations to engage in NCDR or if such invitations have either been ignored or unreasonably refused without good reason with the possibility of this being relevant to costs (see *Mann v Mann* [2014] EWHC 537 (Fam), [\[2014\] 2 FLR 928](#) per Mostyn J and the making of such an order at [36]). Unlike the *Ungley* order, consideration of the FM5 is not left until the conclusion of proceedings and will be used in active case management of a case. See further PD3A, paras 10A–10C: where para 10C applies, the FM5 must be served (i) at least seven days before the first hearing in the proceedings held on notice (ie the first appointment in financial remedy proceedings and the FHDRA in private law children proceedings) or within such other period before that hearing as the court may direct; and (ii) if required by the court, at least seven days before a subsequent hearing or within such other period before a subsequent hearing as the court may direct. The form must be verified by a statement of truth. Para 10C applies to financial remedy cases proceeding on the portal and will, in due course, apply to private law children applications proceeding on the portal.

[3.31]

3.4 Timetabling proceedings: encouraging non-court dispute resolution

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3 Non-court Dispute Resolution](#)

- (1) Paragraph (1A) applies when the court considers that non-court dispute resolution is appropriate.
- (1A) Where the timetabling of proceedings allows sufficient time for these steps to be taken, the court should encourage parties, as it considers appropriate, to—
 - (a) obtain information and advice about, and consider using, non-court dispute resolution; and
 - (b) undertake non-court dispute resolution.
- (2) The court may give directions about the matters specified in paragraph (1A) on an application or of its own initiative.
- (2A) Subject to paragraph (2B), the court may give directions referred to in paragraph (2) at any time during the proceedings.
- (2B) In proceedings to which Practice Direction 12B applies, the court may give directions referred to in paragraph (2) at any time after the court has received the safeguarding letter or safeguarding report referred to in Practice Direction 12B.
- (3) Where paragraph (1A) applies, the court will give directions about the timing and method by which the parties must tell the court if any of the issues in the proceedings have been resolved.
- (4) If the parties do not tell the court if any of the issues have been resolved as directed under paragraph (3), the court will give such further directions as to the management of the case as it considers appropriate.
- (5) The court or court officer will –
 - (a) record the making of any directions to which this rule applies; and
 - (b) arrange for a copy of the directions to be served as soon as practicable on the parties.
- (6) Where the court proposes to exercise its powers of its own initiative, the procedure set out in rule 4.3(2) to (6) applies.

[3.31[1]]

Amendments—[SI 2014/843](#); [SI 2014/3296](#); [SI 2023/1324](#).

'such specified period as it considers appropriate' (r 3.4(1))—Order 6.1 of the Standard Family Orders Volume 1 and Order 22.1 of the Standard Family Orders Volume 2 (revised 17 May 2023 and updated 24 October 2023) provide for an adjournment or a stay of financial and children proceedings respectively for arbitration to take place. Given the terms of [Arbitration Act 1996 s 9](#), a stay of court proceedings is clearly permissible.

'and consider using' (r 3.4(1A)(a))—These words were added to emphasise the intention of the rule.

'undertake non-court dispute resolution' (r 3.4(1A)(b))—Under the previous version of this rule the court's power was limited to directing that the proceedings be adjourned for a specified period 'where the parties agree, to enable [NCDR] to take place'. In *Mann v Mann* [2014] EWHC 537 (Fam), [\[2014\] 2 FLR 928](#) Mostyn J compared the rule to its CPR 1998 equivalent (r 26.4(2A)) and noted that under the CPR the court can impose a stay in favour of NCDR whether the parties agree or not. He suggested that the FPRC consider deleting the words 'if the parties agree' so that it was put on the same footing as its CPR counterpart. This amendment has in effect now been made.

3.4 Timetabling proceedings: encouraging non-court dispute resolution

Reference should also be made to para 23 (under the heading 'Non-court dispute resolution') of the Financial Remedies Guide (13 March 2026, see para [5.352](#)).

It has been held in the civil context (CPR 1998, r 3.1(2)(m)) that the consent of the parties is not necessary for a case to be referred to Early Neutral Evaluation (*Lomax v Lomax* [2019] EWCA Civ 1467 on appeal from *Lomax v Lomax (Referral to Early Neutral Evaluation)* [2019] EWHC 1267 (Fam), [\[2020\] 1 FLR 30](#)). In 'Compulsory ADR' (a report of the Civil Justice Council published in June 2021) it was said that any form of compulsory ADR which is 'not disproportionately onerous and does not foreclose the parties' effective access to the court' is lawful.

In *Churchill v Merthyr Tydfil CBC* [2023] EWCA Civ 1416 the Court of Appeal sidestepped the decision in *Halsey v Milton Keynes General NHS Trust* [2004] EWCA Civ 576 and determined that it is permissible in some circumstances for the court to order that the parties attempt to resolve their dispute via NCDR prior to seeking a judicial determination and/or stay proceedings to allow for NCDR to take place. However such a power must be exercised in a way which does not impinge on the Art 6 right to a fair hearing within a reasonable time by an independent tribunal and must be proportionate to achieving the legitimate aim of settling the dispute fairly, quickly and at reasonable cost. The Court of Appeal did not set out any guidance as to how or at what stage in the litigation the court should decide to make such an order, with Sir Geoffrey Vos MR commenting that 'it would be undesirable to provide a checklist or a score sheet for judges to operate' although some potentially relevant considerations were highlighted at [61] to [63].

The CPR 1998 were amended with effect from 1 October 2024 to reflect this judgment.

In *DKH Retail Ltd v City Football Group Ltd* [2024] EWHC 3231 (Ch) Miles J ordered the parties to mediate notwithstanding the defendant's objections. The parties subsequently notified the court that they had settled their dispute.

In *X v Y (Financial Remedy: Non-Court Dispute Resolution)* [2024] EWHC 538, [\[2024\] 4 WLR 28](#) Knowles J gave a ruling so that those involved in family proceedings 'understand the court's expectation that a serious effort must be made to resolve their differences before they issue court proceedings and, thereafter, at any stage of the proceedings where this might be appropriate', and to signal that 'at all stages of the proceedings, the court will be active in considering whether non-court dispute resolution is suitable' and the changes to Part 3 'will give an added impetus to the court's duty in this regard'. It was also said that to assume that the decision in *Churchill v Merthyr Tydfil CBC* was of limited relevance to family proceedings 'is unwise'.

In *NA v LA* [\[2024\] EWFC 113](#), the applicant had not attended a MIAM claiming an urgency exemption under r 3.8(1)(c)(ii)(ae). The court considered that the exemption (even if validly claimed) was no longer applicable. The court therefore stayed the financial remedy proceedings and required the parties to inform the court by a specific date what engagement had been made with NCDR.

In *WL v HL (Rev 1)* [2021] EWFC B10, [2021] 2 FCR 394, an order was made under the previous version of this rule. The result was that the parties were able to find a solution that worked for them, rather than having one imposed, knowing that the judge maintained an overview of the progress of their negotiations.

CHAPTER 3

FAMILY MEDIATION INFORMATION AND ASSESSMENT MEETINGS (MIAMS)

[3.32]

3.5 Scope of this Chapter

[The Family Court Practice \(The Red Book\)](#) > **[Part III Procedure Rules \(FPR and CPR\)](#)** > **[SI 2010/2955 Family Procedure Rules 2010](#)** > **[Part 3 Non-court Dispute Resolution](#)**

This Chapter contains Rules about the requirement in section 10(1) of the 2014 Act to attend a MIAM.

[3.32[1]]

Amendments—**[SI 2014/843](#)**.

[3.33]

End of Document

3.6 Applications to which the MIAM requirement applies

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3 Non-court Dispute Resolution](#)

- (1) The MIAM requirement applies to any application to initiate the proceedings specified in paragraph (2), unless a MIAM exemption applies.
- (2) The specified proceedings are –
 - (a) the private law proceedings relating to children specified in Practice Direction 3A; and
 - (b) the proceedings for a financial remedy specified in Practice Direction 3A.
 - (c) (*Omitted*)

[3.33[1]]

Amendments—[SI 2014/843](#); [SI 2023/1324](#).

[3.34]

3.7 Making an application

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3 Non-court Dispute Resolution](#)

An application to initiate any of the proceedings specified in Rule 3.8 must contain, or be accompanied by, a form containing, either –

- (a) a confirmation from an authorised family mediator that the prospective applicant has attended a MIAM; or
- (b) a claim by the prospective applicant that one of the MIAM exemptions applies.

[3.34[1]]

Amendments—Substituted by [SI 2014/843](#). Amended by [SI 2023/1324](#).

Modifications—Modified by FPR PD36G for certain applications commenced during 26 March 2018 to 31 March 2027; FPR PD36N for applications made in the period commencing on 27 May 2019 and ending at the end of the day on 31 December 2024; FPR PD36ZD for certain applications filed in the period commencing 20 April 2022 and ending 31 March 2027; FPR PD41H for certain applications filed on or after 1 January 2025.

[3.35]

3.8 Circumstances in which the MIAM requirement does not apply (MIAM exemptions)

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3 Non-court Dispute Resolution](#)

The MIAM requirement does not apply if –

- (1) a prospective applicant claims in the relevant form that any of the following circumstances (a 'MIAM exemption') applies –

Domestic abuse

- (a) there is evidence of domestic abuse, as specified in Practice Direction 3A; or

Child protection concerns

- (b)

- (i) a child would be the subject of the application; and
(ii) that child or another child of the family who is living with that child is currently –

- (aa) the subject of enquiries by a local authority under section 47 of the 1989 Act; or

- (ab) the subject of a child protection plan put in place by a local authority; or

Urgency

- (c) the application must be made urgently because –

- (i) there is risk to the life, liberty or physical safety of the prospective applicant or his or her family or his or her home; or

- (ii) any delay caused by attending a MIAM would cause –

- (aa) a risk of harm to a child;

- (ab) a risk of unlawful removal of a child from the United Kingdom, or a risk of unlawful retention of a child who is currently outside England and Wales;

- (ac) a significant risk of a miscarriage of justice;

- (ad) significant financial hardship to the prospective applicant; or

- (ae) irretrievable problems in dealing with the dispute (including the irretrievable loss of significant evidence); or

- (iii) there is a significant risk that in the period necessary to schedule and attend a MIAM, proceedings relating to the dispute will be brought in another state in which a valid claim to jurisdiction may exist, such that a court in that other state would be seised of the dispute before a court in England and Wales; or

3.8 Circumstances in which the MIAM requirement does not apply (MIAM exemptions)

Previous MIAM attendance or non-court dispute resolution attendance

(d)

- (i) in the 4 months prior to making the application, the person attended a MIAM or a non-court dispute resolution process relating to the same or substantially the same dispute; and
- (ii) where the person attended a non-court dispute resolution process, there is evidence of that attendance, as specified in Practice Direction 3A; or

(e) *(Omitted)*

(f)

- (i) the application would be made in existing proceedings which are continuing; and
- (ii) the prospective applicant attended a MIAM before initiating those proceedings; or

(g) *(Omitted)*

(h)

- (i) there is evidence that the prospective applicant is bankrupt, as specified in Practice Direction 3A; and
- (ii) the proceedings would be for a financial remedy; or

(i) *(Omitted)*

(j) the application would be made without notice; or

(Paragraph 5.1 of Practice Direction 18A sets out the circumstances in which applications may be made without notice.)

(k)

- (ai) the prospective applicant is not able to attend a MIAM online or by video-link and an explanation of why this is the case is provided to the court;
- (i) the prospective applicant is subject to a disability or other inability that would prevent attendance in person at a MIAM unless appropriate facilities can be offered by an authorised mediator;
- (i) the prospective applicant has contacted as many authorised family mediators as have an office within fifteen miles of his or home (or five of them if there are five or more), and all have stated that they are unable to provide such facilities; and
- (iii) the names, postal addresses and telephone numbers or e-mail addresses for the authorised family mediators contacted by the prospective applicant, and the dates of contact, are provided to the court; or

(l) the prospective applicant cannot attend a MIAM because the prospective applicant is –

- (i) in prison or any other institution in which the prospective applicant is required to be detained and facilities cannot be made available for them to attend a MIAM online or by video-link;

3.8 Circumstances in which the MIAM requirement does not apply (MIAM exemptions)

- (ii) subject to conditions of bail that prevent contact with the other person; or
- (iii) subject to a licence with a prohibited contact requirement in relation to the other person; or
- (m) (*Omitted*)
- (n) a child is one of the prospective parties; or
- (o)
- (ai) the prospective applicant is not able to attend a MIAM online or by video-link and an explanation of why this is the case is provided to the court;
- (i) the prospective applicant has contacted as many authorised family mediators as have an office within fifteen miles of his or her home (or five of them if there are five or more), and all of them have stated that they are not available to conduct a MIAM within fifteen business days of the date of contact; and
- (ii) the names, postal addresses and telephone numbers or e-mail addresses for the authorised family mediators contacted by the prospective applicant, and the dates of contact, are provided to the court; or
- (p) —
- (i) the prospective applicant is not able to attend a MIAM online or by video-link;
- (ii) there is no authorised family mediator with an office within fifteen miles of the prospective applicant's home; and
- (iii) an explanation of why this exemption applies is provided by the prospective applicant to the court.
- (2) (*Omitted*)

[3.35[1]]

Amendments—[SI 2014/843](#); [SI 2023/1324](#).

Modifications—Modified by FPR PD36G for certain applications commenced during 26 March 2018 to 31 March 2027. Modified by FPR PD36N for certain applications commenced during 27 May 2019 to 31 December 2024.

'evidence of domestic violence' (r 3.8(1)(a))—Note that while PD3A remains prescriptive about what evidence of violence is acceptable, the categories of acceptable evidence have been substantially widened, including (para 20(u)) evidence of 'domestic violence ... in the form of abuse which relates to financial matters'. The former requirement that the alleged violence (as defined) has taken place within the past five years has been removed.

'the application must be made urgently' (r 3.8(1)(c))—Note that the urgency must genuinely arise from one of the stated causes. Generic assertions that 'the case is urgent', without more, do not bring a case within this rule (*Re K* [2022] EWCA Civ 468, [\[2022\] 2 FLR 1064](#) at [34]–[36]).

'unlawful retention of a child who is currently outside England and Wales' (r 3.8(1)(c)(ii)(ab))—This is a curious provision. It implies that the unlawful retention of a child within England and Wales is not an emergency justifying a MIAM exemption. But it is submitted that this remains, as was said in *Re H (Children)* [\[2007\] EWCA Civ 529](#), 'a situation which call[s] for the court to act with urgency and to treat the matter as an emergency', and to do otherwise will create 'a significant risk of a miscarriage of justice' (r 3.8(1)(c)(ii)(ac)).

[3.36]

3.8 Circumstances in which the MIAM requirement does not apply (MIAM exemptions)

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3.9 Conduct of MIAMs

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3 Non-court Dispute Resolution](#)

- (1) Only an authorised family mediator may conduct a MIAM.
- (2) At the MIAM, the authorised family mediator must –
 - (a) provide information about the principles, process and different models of mediation, and information about other methods of non-court dispute resolution;
 - (b) consider and explain the potential benefits of mediation and other methods of non-court dispute resolution as a means of resolving the dispute;
 - (c) assess whether there has been, or is a risk of, domestic abuse;
 - (d) assess whether there has been, or is a risk of, harm by a prospective party to a child that would be a subject of the application;
 - (e) indicate to those attending the MIAM which form, or forms, of non-court dispute resolution may be most suitable as a means of resolving the dispute, and why; and
 - (f) where sub-paragraph (e) applies, provide information to those attending the MIAM about how to proceed with the form, or forms, of non-court dispute resolution in question.

[3.36[1]]

Amendments—[SI 2014/843](#); [SI 2023/1324](#).

'authorised family mediator' (r 3.9(1))—This expression is defined in r 3.1.

[3.37]

3.10 MIAM exemption not validly claimed or no longer applicable

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3 Non-court Dispute Resolution](#)

- (1) If a MIAM exemption has been claimed, the court will inquire into whether the exemption—
 - (a) was not validly claimed; or
 - (b) was validly claimed but is no longer applicable.
- (1A) The inquiry referred to in paragraph (1) must be made—
 - (a) when making the decision on allocation, in private law proceedings to which the MIAM requirement applies; or
 - (b) when making a decision on allocation (if such a decision is made), and in any event at the first hearing, in proceedings for a financial remedy to which the MIAM requirement applies.
- (2) If a court finds that the MIAM exemption was not validly claimed, or that it was validly claimed but is no longer applicable, the court will—
 - (a) direct the applicant, or direct the parties to attend a MIAM; and
 - (b) if necessary, adjourn the proceedings to enable a MIAM to take place;

unless the court considers that in all the circumstances of the case, the MIAM requirement should not apply to the application in question.

- (3) In making a decision under Rule 3.10(2), the court will have particular regard to—
 - (a) any applicable time limits;
 - (b) the reason or reasons why the MIAM exemption was not validly claimed;
 - (ba) the reasons why a MIAM exemption which was validly claimed is no longer applicable;
 - (c) the applicability of any other MIAM exemptions;
 - (ca) the potential benefits of attending a MIAM, including the opportunity to receive information about options for non-court dispute resolution; and
 - (d) the number and nature of issues that remain to be resolved in the proceedings.

[3.37[1]]

Amendments—[SI 2014/843](#); [SI 2023/1324](#).

'will direct the applicant, or direct the parties, to attend a MIAM ... unless the court considers that ... the MIAM requirement should not apply' (r 3.10(2)(a))—The court must direct the applicant, or both parties, to attend a MIAM unless there is good reason not to. In addition to the circumstances envisaged in r 3.10(3), it may transpire that following the issue of the proceedings the parties have started to talk constructively to one another. In such circumstances, it may be felt that having had to pay a substantial fee is a sufficient sanction on the applicant.

3.10 MIAM exemption not validly claimed or no longer applicable

Generally, MIAMs should not be regarded as regarded merely as 'an inconvenient obstacle to bypass to reach the court door' but as a valuable opportunity to explore NCDR. See generally the Review of the Child Arrangements Programme by the Private Law Working Group (June 2019).

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